

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

----- X
MICHAEL BROWN,

Plaintiff,

-against-

THE CITY OF NEW YORK, NEW YORK CITY POLICE
DETECTIVE TIMOTHY RIZZO, Shield No. 3691, NEW
YORK CITY POLICE DETECTIVE ANTHONY
FARANDA, Shield No. 5186, and NYPD POLICE
OFFICERS JOHN DOES NUMBERS ONE THROUGH
TEN,

Defendants.
----- X

SUMMONS

Index No.:

The Basis of Venue is:
Location of Incident

Plaintiff designates Queens
County as the place of trial.

To the above named Defendants:

You are hereby summoned to answer the Verified Complaint in this action, and to serve a copy of your Verified Answer to the Verified Complaint, or, if the Verified Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
September 26, 2024

Yours, etc.
Michael F. Pecorella
Michael Pecorella, Esq.
Shulman-Hill, PLLC
Attorneys for Plaintiff
1 State Street Plaza
15th Floor
New York, New York 10004
(212)-221-1000

TO: THE CITY OF NEW YORK, Corporation Counsel, 100 Church Street, NY, NY 10007

NEW YORK CITY POLICE DETECTIVE TIMOTHY RIZZO, Shield No. 3691; NYPD
113th Precinct, 167-02 Baisley Boulevard, Jamaica, NY 11434

NEW YORK CITY POLICE DETECTIVE ANTHONY FARANDA, Shield No. 5186;
NYPD 113th Precinct, 167-02 Baisley Boulevard, Jamaica, NY 11434

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

----- X

MICHAEL BROWN,

Plaintiff,

INDEX NO.:

VERIFIED COMPLAINT

-against-

THE CITY OF NEW YORK, NEW YORK CITY
POLICE DETECTIVE TIMOTHY RIZZO, Shield No.
3691, NEW YORK CITY POLICE DETECTIVE
ANTHONY FARANDA, Shield No. 5186, and NYPD
POLICE OFFICERS JOHN DOES NUMBERS ONE
THROUGH TEN,

JURY TRIAL DEMANDED

Defendants.

----- X

Plaintiff MICHAEL BROWN, by his attorneys, Shulman-Hill, PLLC, as and for his
Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of Plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On October 7, 2021, at approximately 5:30 p.m., Plaintiff Michael Brown, while lawfully inside 167-02 Baisley Boulevard, County of Queens, New York, was subject to an unlawful arrest, detention, and excessive use of force by defendant Police Officers. In addition, Plaintiff was subjected to approximately thirty-four (34) months in unlawful custody at the 113th Precinct, Queens County Central Booking, and Rikers Island Correctional Facility. All charges against the plaintiff were dismissed and sealed on or around August 1, 2024, after he was acquitted of all charges at trial. Plaintiff was deprived of his rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 802 and his constitutional, common law, and statutory rights when the individual defendants unlawfully stopped, detained, subjected to excessive force, passed along false accusations to prosecuting attorneys, and engaged in the malicious prosecution of Plaintiff, in violation of the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution, the common law and the laws of the State of New York.

PARTIES

2. Plaintiff Michael Brown is a resident of the state of New York.

3. New York City Police Detective Timothy Rizzo, Shield No. 3691, was at all times relevant herein an officer, employee, and agent of the New York City Police Department.

4. At all times relevant herein, New York City Police Detective Timothy Rizzo, Shield No. 3691, was assigned to the NYPD 113th Precinct.

5. New York City Police Detective Timothy Rizzo, Shield No. 3691, is being sued in his individual and official capacity.

6. New York City Police Detective Anthony Faranda, Shield No. 5186, was at all times relevant herein an officer, employee, and agent of the New York City Police Department.

7. At all times relevant herein, New York City Police Detective Anthony Faranda, Shield No. 5186, was assigned to the NYPD 113th Precinct.

8. New York City Police Detective Anthony Faranda, Shield No. 5186, is being sued in his individual and official capacity.

9. New York City Police Officers John Does #1-10 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

10. Police Officers John Does #1-10 are being sued in their individual and official capacities.

11. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees, and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

12. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

13. Plaintiff in furtherance of his causes of action brought pursuant to New York State law filed a timely Notice of Claim against the City of New York in compliance with the Municipal Law Section 50 and in accordance with New York State law.

14. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and the City of New York has failed to pay or adjust the claims.

15. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

16. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

17. On October 7, 2021, at approximately 5:30 p.m., Plaintiff was lawfully present inside 167-02 Baisley Boulevard, County of Queens, New York, when the defendant Police Officers unlawfully arrested Plaintiff without probable cause or legal justification.

18. At the aforementioned place and time, the plaintiff had been summoned to the NYPD 113th Precinct for questioning regarding a homicide that had occurred in Queens, New York on or about September 25, 2018.

19. It was at this point that defendant officers began to arrest the plaintiff, restraining him with tight metal handcuffs and subjecting him to unlawful pat-down search.

20. At no time relevant herein did Plaintiff commit a crime or violate the law in any way, nor did the police officers have an objective reason to accuse Plaintiff of committing a crime or violating the law in any way.

21. At no point did Defendant Officers recover any weapons, graffiti instruments, or other illegal contraband from Plaintiff or from a location that was in Plaintiff's possession, custody, or control.

22. Plaintiff did not resist arrest.

23. Nevertheless, Plaintiff was unlawfully arrested and handcuffed by the defendant officers without legal justification or probable cause.

24. Thereafter, the plaintiff was unlawfully fingerprinted, photographed, and placed in a holding cell.

25. During the course of his interrogation by defendant officers, the Plaintiff vehemently denied any knowledge of or involvement in the aforementioned incident on September 25, 2018.

26. Thereafter the plaintiff was transported to Queens County Central Bookings, where he was again unlawfully fingerprinted, photographed, and placed in a holding cell.

27. While Plaintiff was in custody, the defendant police officers provided the Queens County District Attorney's Office with the false, misleading and/or incomplete information that Plaintiff committed a crime.

28. Specifically, the defendant police officers falsely stated to the Queens County District Attorney's Office that Plaintiff was engaged in Murder in the second degree.

29. Thereafter, the plaintiff was arraigned in Queens County Criminal Court, charged with crimes he did not commit, his bail was set and he was remanded to Rikers Island Correctional Facility, where he remained for the course of his trial.

30. During Plaintiff's trial, defendant officers gave false testimony in an attempt to implicate the plaintiff in these crimes. Further, defendant officers coerced an eyewitness to claim that he saw the plaintiff at the scene in exchange for his release from federal custody; the eyewitness later recanted his testimony and admitted that he had in fact never seen the plaintiff.

31. On or about August 1, 2024, Plaintiff was acquitted and all charges against him were dismissed and sealed in their entirety.

32. Upon his acquittal, Plaintiff was released from Rikers Island Correctional Facility after approximately thirty-four (34) months in custody.

33. Some of the police officer defendants observed the violation of Plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent their fellow officers from unjustifiably arresting, confining, and using excessive force against Plaintiff.

34. The unlawful arrest, confinement, and use of excessive force by the individually named defendants caused Plaintiff to sustain physical, psychological and emotional trauma.

FIRST CAUSE OF ACTION

Negligence

35. The Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

36. Defendants owed a duty of care to Plaintiff.

37. To the extent defendants claim that the injuries to Plaintiff by the defendant police officers were unintentionally caused and that the force used by the defendants against him was unintentional, then the defendants breached that duty of care by, among other things, seizing and tightly handcuffing him.

38. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.

39. All of the foregoing occurred without any fault or provocation by Plaintiff.

40. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

41. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

42. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SECOND CAUSE OF ACTION **Unlawful Stop, Question, and Search**

43. The Plaintiff repeats, reiterates, and re-alleges the foregoing paragraphs as if the same were fully set forth at length herein.

44. The illegal approach, pursuit, stop and grab employed by defendants herein terminated Plaintiff's freedom of movement through means intentionally applied.

45. The conduct of defendants in approaching, stopping, and grabbing Plaintiff was performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

46. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.

47. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

48. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

THIRD CAUSE OF ACTION

Violation of Fourth and Fourteenth Amendment Rights: Unlawful Seizure and Deprivation of Liberty

49. The Plaintiff repeats, reiterates, and re-alleges the foregoing paragraphs as if the same were fully set forth at length herein.

50. The individually named police officer defendants, while acting in concert and within the scope of their authority, caused Plaintiff to be seized, unlawfully searched, falsely arrested, falsely imprisoned, and maliciously prosecuted without reasonable suspicion and/or probable cause, in violation of Plaintiff's right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

51. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to physical, emotional, and psychological injuries.

FOURTH CAUSE OF ACTION

False Arrest/False Imprisonment

52. The Plaintiff repeats, reiterates, and re-alleges the foregoing paragraphs as if the same were fully set forth at length herein.

53. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine Plaintiff and, in fact, confined Plaintiff, and Plaintiff was conscious of the confinement. In addition, Plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

54. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York and the United States Constitution.

55. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

56. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

57. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to loss of liberty, emotional and psychological injuries.

FIFTH CAUSE OF ACTION
Negligent Infliction of Emotional Distress

58. The Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

59. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to Plaintiff.

60. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to Plaintiff and violated Plaintiff's statutory and common law rights as guaranteed Plaintiff by the laws and Constitution of the State of New York.

61. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.

62. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

63. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

64. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SIXTH CAUSE OF ACTION
Negligent Hiring, Retention, Training and Supervision

65. The Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

66. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train, and supervise defendants, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.

67. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to physical, emotional, and psychological injuries.

SEVENTH CAUSE OF ACTION**Failure to Intervene**

68. The Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

69. The defendants that did not physically touch Plaintiff, but were present when other officers violated Plaintiff's Constitutional Rights had an affirmative duty to intervene on behalf of Plaintiff, whose constitutional rights were being violated in their presence by other officers.

70. Defendants failed to intervene to prevent the unlawful conduct described herein.

71. As a result of the foregoing, Plaintiff suffered serious, debilitating, and permanent injury, his liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subject to other physical constraints.

72. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.

73. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

74. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

75. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

EIGHTH CAUSE OF ACTION**Violation of Fourth And Fourteenth Amendment Rights:****Denial of Right to Fair Trial/Due Process**

76. The Plaintiff repeats, reiterates, and re-alleges the foregoing paragraphs as if the same were fully set forth at length herein.

77. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Queens County District Attorney's Office.

78. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the Queens County District Attorney's Office.

79. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the Queens County District Attorney's Office.

80. In withholding/creating false evidence against Plaintiff, and in providing/withholding information with respect thereto, Defendants violated Plaintiff's constitutional right to due process and fair trial under the New York State Constitution and under the Due Process Clause of the Fifth Amendment to the Constitution of the United States and to be free of deprivation of liberty under the Fourteenth Amendment to the United States Constitution.

81. As a result of the foregoing, Plaintiff sustained, inter alia, loss of the right to due process and a fair trial, loss of liberty, emotional distress, embarrassment and humiliation, and deprivation of his constitutional rights.

82. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

83. The City, as the employer of the officer Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

84. As a result of the aforementioned conduct of Defendants, Plaintiff sustained injuries including, but not limited to: economic, emotional, and psychological injuries.

NINTH CAUSE OF ACTION

Violation of Plaintiff's Fourth and Fourteenth Amendment

Rights: Excessive Force

85. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

86. The use of excessive force by defendants by, amongst other things, seizing and tightly handcuffing Plaintiff, constituted objectively unreasonable physical seizures of Plaintiff in violation of his rights under the Fourth and Fourteenth Amendments to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

87. Defendants were at all time agents, servants, and employees acting within the scope of his employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

TENTH CAUSE OF ACTION
42 U.S.C. § 1983 and New York State Law
Malicious Prosecution

88. The Plaintiff repeats, reiterates, and re-alleges the foregoing paragraphs as if the same were fully set forth at length herein.

89. The acts and conduct of the Defendants constitute malicious prosecution under the United States Constitution.

90. Defendants commenced and continued a criminal proceeding against Plaintiff.

91. There was actual malice and an absence of probable cause for the criminal proceeding against Plaintiff and for each of the charges for which he was prosecuted.

92. The prosecution and criminal proceedings terminated in Plaintiff's favor on the aforementioned dates.

ELVENTH CAUSE OF ACTION
Individual Defendant Officer's Violation of Plaintiff's AC 8-802 Rights

93. The Plaintiff repeats, reiterates, and re-alleges the foregoing paragraphs as if the same were fully set forth at length herein.

94. The acts of Defendant Officers constituted conduct under color of any law, ordinance, rule, regulation, custom, or usage.

95. The acts of Defendant Officers caused Plaintiff to be deprived of his rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 802, to wit: to be secure in his person, house, papers, and effects against unreasonable searches and seizures, and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.

96. The Defendant Officers, while in uniform, unlawfully seized, frisked, and searched the Plaintiff, before detaining plaintiff and further causing his detention for approximately thirty-four (34) months in total.

97. By reason of the acts and omissions by Defendants described above, Plaintiff has endured physical and emotional injuries and was otherwise damaged and injured.

TWELFTH CAUSE OF ACTION**Individual Defendant Officer's Failure to Intervene in Violation of Plaintiff's AC 8-802 Rights**

98. The Plaintiff repeats, reiterates, and re-alleges the foregoing paragraphs as if the same were fully set forth at length herein.

99. The acts of Defendant Officers constituted conduct under color of any law, ordinance, rule, regulation, custom or usage.

100. Defendant Officers had a duty to protect Plaintiff from violations of his rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 802, to wit: to be secure in his person, house, papers, and effects against unreasonable searches and seizures, and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.

101. The Defendants that did not physically touch Plaintiff, but were present when other officers violated Plaintiff's AC 8-802 right against unreasonable search and seizure and excessive force had an affirmative duty to intervene on behalf of Plaintiff, whose constitutional rights were being violated in their presence by other officers.

102. Defendants failed to intervene to prevent the unlawful conduct described herein, thereby failed in their duty to intervene to protect Plaintiff from violation of his rights.

103. By reason of the acts and omissions by Defendants described above, Plaintiff has endured physical and emotional injuries and was otherwise damaged and injured.

THIRTEENTH CAUSE OF ACTION**City-Employer's Liability for Defendant Officer's Violation of Plaintiff's AC 8-802 Rights**

104. The Plaintiff repeats, reiterates, and re-alleges the foregoing paragraphs as if the same were fully set forth at length herein.

105. Defendant Officers are "covered individuals," as defined in 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 - 801 in that they are employees of the Police Department or persons appointed by the Police Commissioner as a Special Patrolman.

106. The City of New York, as the employer of the covered individual Defendant Officers, is liable to the Plaintiff for the wrongdoing of the covered individual Defendant Officers.

107. The acts of Defendant Officers constituted conduct under color of any law, ordinance, rule, regulation, custom or usage.

108. The acts of Defendant Officers caused Plaintiff to be deprived of his rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 802, to wit: to be secure in his person, house, papers, and effects against unreasonable searches and seizures, and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.

109. The Defendant Officers, while in uniform, unlawfully seized, frisked, and searched the Plaintiff, before detaining plaintiff and further causing his detention for approximately thirty-four (34) months in total.

110. By reason of the acts and omissions by Defendants described above, Plaintiff has endured physical and emotional injuries and was otherwise damaged and injured.

FOURTEENTH CAUSE OF ACTION

City-Employer's Liability for Defendant Officer's Failure to Intervene in Violation of Plaintiff's AC 8-802 Rights

111. The Plaintiff repeats, reiterates, and re-alleges the foregoing paragraphs as if the same were fully set forth at length herein.

112. Defendant Officers are “covered individuals,” as defined in 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 - 801 in that they are employees of the Police Department or persons appointed by the Police Commissioner as a Special Patrolman.

113. The City of New York, as the employer of the covered individual Defendant Officers, is liable to the Plaintiff for the wrongdoing of the covered individual Defendant Officers.

114. The acts of Defendant Officers constituted conduct under color of any law, ordinance, rule, regulation, custom or usage.

115. Defendant Officers had a duty to protect Plaintiff from violations of his rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 802, to wit: to be secure in his person, house, papers, and effects against unreasonable searches and seizures, and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.

116. The Defendants that did not physically touch Plaintiff but were present when other officers violated Plaintiff's AC 8 – 802 rights against unreasonable search and seizure and excessive force had an affirmative duty to intervene on behalf of Plaintiff, whose constitutional rights were being violated in their presence by other officers.

117. Defendants failed to intervene to prevent the unlawful conduct described herein, thereby failed in their duty to intervene to protect Plaintiff from violation of his rights.

118. By reason of the acts and omissions by Defendants described above, Plaintiff has endured physical and emotional injuries and was otherwise damaged and injured.

FIFTEENTH CAUSE OF ACTION

Deprivation of Rights Under the United States Constitution and 42 U.S.C. § 1983 By the City of New York Claim for Monell Liability

119. The Plaintiff repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

120. At all times material to this complaint, Defendant **THE CITY OF NEW YORK** acting through its police department and through Defendant officers had in effect actual and/or *de facto* policies, practices, customs and usages which were a direct and proximate cause of the unconstitutional conduct alleged herein.

121. At all times material to this complaint, Defendant **THE CITY OF NEW YORK** acting through its police department and through Defendant officers had in effect actual and/or *de facto* policies, practices, customs and usages of failing to properly train, screen, supervise and discipline employees and police officers, and of failing to inform the individual Defendants' supervisors of the need to train, screen, supervise and discipline said Defendants. The policies, practices, customs, and usages were a direct and proximate cause of the unconstitutional conduct alleged herein.

122. At all times material to this complaint, Defendant **THE CITY OF NEW YORK** acting through its police department and through Defendant officers, being aware that such lack of training, screening, supervision, and discipline leads to improper conduct, acted with deliberate indifference in failing to establish a program of effective training, screening, supervision and discipline. Defendant **THE CITY OF NEW YORK** being aware that the persistent and substantial risk of improper detention of persons based upon insufficient or incorrect information, and effective training, screening, supervision and discipline would lessen the likelihood of such occurrences. These are recurrent circumstances which involve such potential danger to the constitutional rights of citizens, more specifically Plaintiff, and which are officially tolerated by Defendant **THE CITY OF NEW YORK**. Such policies, practices, customs or usages were a direct and proximate cause of the conduct alleged herein and otherwise a direct and proximate cause of the harm/damages alleged herein, in violation of Plaintiff's constitutional rights as guaranteed under 42 U.S.C. § 1983 and the United States Constitution, including its Fourth and Fourteenth Amendments.

123. The existence of the above-described *de facto* unlawful policies and/or well-settled and widespread customs and practices is known to, encouraged and/or condoned by supervisory and policy-making officers and Police Officers and defendant **THE CITY OF NEW YORK**, including but not limited to the NYPD.

124. At the time of the aforementioned constitutional violations, **THE CITY OF NEW YORK** and NYPD were and had been on notice of such unconstitutional conduct, customs, and de facto policies, such that the failure of **THE CITY OF NEW YORK's** NYPD to take appropriate remedial action amounted to deliberate indifference to the constitutional rights of persons with whom the correction officers come in contact. In light of the extensive pattern of well- settled, pervasive customs and policies causing constitutional violations, documented in part infra, the need for more effective supervision and other remedial measures was patently obvious, but **THE CITY OF NEW YORK** and NYPD made no meaningful attempt to prevent future constitutional violations.

125. Defendant **THE CITY OF NEW YORK** knew or should have known that the acts alleged herein would deprive Plaintiff of his rights under the Fourth, Fifth and Fourteenth Amendments to the United States Constitution.

126. Plaintiff was lawfully in the above vicinity at the above time when he was stopped, questioned, searched and seized solely on the basis of his age and/or race and for no legal or legitimate reason.

127. That said illegal stop and seizure was part of the CITY'S custom and practice and/or practice of racial profiling, and/or meeting arrest or summons quotas, and/or the illegal stop and search of civilians which was authorized by, or met with the tacit approval of the CITY and NYPD under their "Stop, Question and Frisk" policy or program ("Stop and Frisk").

128. That under the "Stop and Frisk" program the CITY and NYPD permitted, condoned, or acted with deliberate indifference to the racial disparity of its' application, to the fact that unnecessary or illegal frisks or searches were conducted, that very low percentages of seizures, frisks and searches resulted in arrests or the recovery of contraband, that pretextual reasons are provided for "Stop and Frisk", that officers do not always fill out Stop and Frisk reports, i.e. UF-250s, and are not disciplined when they fail to do so, that stop and frisks are conducted without reasonable suspicion, and that the program of "Stop and Frisk" has resulted in illegal stops, seizures, frisks, arrests and the use of physical force.

129. That the CITY and NYPD have failed to discipline, train, monitor or retrain offending police officers who engaged in stops and frisks without any legal justification and has failed to discipline police officers who fail to fill out required UF-250s.

130. That the CITY and NYPD have failed to adequately investigate and/or discipline officers who use excessive force, stop and frisk innocent citizens who have not done anything illegal or acted in suspicious manner warranting a seizure, who failed to report misconduct of fellow officers, who destroy evidence, who engage in fraud, misrepresentations, deceit, and maliciously participate in and instigate prosecutions of innocent citizens.

131. It is alleged herein that Plaintiff was stopped and seized absent reasonable suspicion. That said actions of defendants were pursuant to an illegal and improper Stop and Frisk program that was promulgated by defendants. That such custom, policy and program has created a class of citizens, including Plaintiff, who have been illegally stopped and seized,

searched and questioned based on their race, and in order to meet arrest quotas. Evidence of said policy is as follows:

a) That in a class action lawsuit David Floyd, et. al. v. City of New York, et. al., pending in United States District Court, Southern District of New York, 08 CIV 1034, in a decision dated 5/16/12 certifying a class action lawsuit, it was found that between the years of 2005 and 2009 a reported 2.8 million people in New York City have been stopped and frisked. Of said number more than 87% were minority citizens. Summons and arrests were issued or made in approximately 10% of the reported stops. Meaning that based on their own records, defendants' suspicions are incorrect approximately 9 out of 10 stops.

b) The Honorable Shira A. Scheidlin, found in the Floyd decision that:

(1) It is indisputable that NYPD has an enormous Stop and Frisk program;

(2) Evidence shows that the Stop and Frisk program is organized and

hierarchical;

(3) Stop and Frisk program has been designed and revised at highest levels of defendants;

(4) The implementation of the program is conducted according to uniform and centralized rules;

(5) Monitoring of the program is hierarchical;

c) The program is the result of institutional decisions and directives. Justice Scheindlin further found that a preponderance of evidence shows that defendants' policy of establishing performance standards and demanding increased levels of stop and frisks results in putative class of aggrieved citizens. The Court noted that street level stops have risen every year. That in 2004, defendants documented 313,000 stops, and in 2011 they reported 684,000 stops. In a Police Officer Performance Objectives Operation Order dated 10/17/11, Commissioner Kelly directed that "Department managers can and must set performance goals - relating to "the issuance of summons, the stopping and questioning of suspicious individuals and the arrests of criminals." It further states that "uniformed members who do not demonstrate activities ... or who fail to engage in proactive activities . . . will be evaluated accordingly and their assignments reassessed."

132. Other instances of an illegal and/or improper stop and frisk program custom or practice and/or excessive use of force and filing of false charges includes but not limited to:

a) On 4/12/11 in the vicinity of Walton Avenue and Mt. Hope Place, Bronx, NY, while doing nothing illegal or improper, Lonnie Thompson was approached by several uniformed police officers for no reason and without reasonable suspicion. After being stopped, Mr. Thompson was patted down and searched. He was arrested and charged with Criminal Possession of a Weapon in the Fourth Degree. This, even though the weapon was a bona fide work tool. Mr. Thompson was subjected to a strip search at the 46th Precinct. All charges were dismissed.

b) On 5/4/11 in the vicinity of 2345 Jerome Avenue, Bronx, NY, Alexis Niewkerk, who is handicapped, was sitting in his legally parked vehicle and waiting for his friends to finish shopping at a nearby store. All of a sudden several undercover police officers from Bronx Narcotics approached his vehicle for no reason and without reasonable suspicion ordered him out of said vehicle. Mr. Niewkerk was subjected to a pat down

and search. He was subsequently arrested for possession of a controlled substance in the seventh degree even though the "substance" recovered from his pants pocket was his own prescribed pain medication. Mr. Niewkerk was subjected to a strip search and forced to move his body in ways that are extremely painful given his medical status and condition. All charges were dismissed.

c) On 6/2/11 in the vicinity of 985 Simpson Street, Bronx, NY, Jesus Rosario, an infant, was approached by several police officers from the 41st Precinct. He was told to "get on the wall" and thereafter patted down and searched. Mr. Rosario was accused of Trespassing in the Second Degree. Mr. Rosario was doing nothing illegal or improper at the time the officers approached as he was simply exiting 985 Simpson Street after visiting his father who resides in said building. After being arrested, Mr. Rosario was subjected to a strip search at the 41st Precinct. The case was declined to be prosecuted by the District Attorney's office.

d) On 8/1/12 in the vicinity of 1000 Simpson Street, Bronx, NY Nicholas Hernandez and Dilson Pena were sitting outside of their building on a public bench and doing nothing illegal or improper. All of a sudden, several police officers from the 41st Precinct approached them for no reason and told them to submit to a frisk. Mr. Hernandez and Mr. Pena were accused of possession of marijuana even though no marijuana was recovered. They were each subjected to a strip search at the 41st Precinct. All charges against them were declined to be prosecuted by the District Attorney's Office.

e) On 1/22/11 in the vicinity of 808 Park Avenue, Brooklyn, NY, Captain

Michelle Culp, a now retired Captain for New York City Department of Corrections, was visiting her sick and elderly mother at the aforementioned address and decided to walk her mother's dog. In so doing, Captain Culp was approached by several uniform housing police officers and accused of Trespassing in the Second Degree. She was patted down and searched. This, despite the fact that Captain Culp explained that she was visiting her mother and her identification and personal belongings were in her mother's apartment in the same building. All charges were dismissed.

f) On 5/20/11 in the vicinity of Park Avenue and East 138th Street, Bronx, NY, Patrick Nielson was exiting the number 4 subway train and going to his car which was parked nearby when he was followed, stopped, frisked, and assaulted by several undercover police officers from Bronx Narcotics for no reason. Thereafter, he was arrested and accused of possession of a controlled substance. Mr. Nielson was subjected to a strip search. The "controlled" substance was Mr. Nielson's prescribed medicine. All charges were dismissed.

g) On 6/22/10 in the vicinity of 139th Street and Lenox Avenue, New York, NY, Wilford Person was approached by several undercover police officers from Manhattan North Narcotics for no legitimate reason. Mr. Person was thereafter told to get against a fence and patted down and searched. He was accused of possession of marihuana. Mr. Person was simply playing basketball at the time the police approached him. After being arrested and subjected to a strip search, Mr. Pearson was prosecuted. All charges were eventually dismissed.

h) On 5/2/12 in the vicinity of 1912 Third Avenue, New York, NY, Jose Baez, the manager of a local eyeglass store, left the store to buy his lunch. After leaving the store Mr. Baez, for no reason at all, was approached by several undercover police officers from Manhattan North Narcotics, and was detained, patted down, searched, and falsely accused of selling marihuana. Mr. Baez was subjected to a strip search. All charges against him were dismissed.

i) On 11/13/10 in the vicinity of 1113 Boston Road, Bronx, NY, Alpha Mahoi, was doing nothing illegal or improper when, for no reason, he was approached by several undercover police officers from Bronx Narcotics and accused of being involved in the sale of cocaine. He was cuffed, patted down, searched, arrested and strip searched at the precinct. All charges were dismissed.

j) On 3/10/12 in the vicinity of 1821 Davison Avenue, Bronx, NY, Keyewanie Blackledge, Dwayne Smith and Richard Campbell were leaving his friend's apartment when they were approached by several uniform police officers from the 46th Precinct for no reason and told to "get on the wall" and "get on the floor" and thereafter patted down and searched. They was charged with Trespassing in the Second Degree. All charges were dismissed.

- k) On 8/1/12 in the vicinity of 1000 Simpson Street, Bronx, NY, Dylan Pena was outside recording on his cell phone several police officers from the 41st Precinct arresting a person from the neighborhood. Upon seeing Mr. Pena recording the incident several police officers grabbed him and pushed him to the ground and seized his cell phone without any reason to do so. All data on the phone was subsequently erased by the officers. Mr. Pena was also patted down and searched. He was charged with resisting arrest and was strip searched at the 41st Precinct. The charges were declined to be prosecuted by the District Attorney's Office.
- l) On 5/17/11 in the vicinity of 1690 Clay Avenue, Bronx, NY, Gregory Williams was leaving a family friend's apartment after helping her move furniture so she could clean. Upon exiting the building Mr. Williams, for no reason at all, was approached by several uniformed police officers from the 44th Precinct and patted down and searched. He was accused of Trespassing in the Second Degree despite his family friend informing the police officers at the scene and at the 44th Precinct that he had permission to be in the building. Mr. Williams was strip searched. All charges against him were dismissed.
- m) On 3/16/11 in the vicinity of 1740 Grand Avenue, Bronx, NY, Lindon Grant just left his apartment to walk approximately 1 block to buy breakfast before going to work. After he bought his breakfast and left the store he was approached by several undercover police officers from the 46th Precinct for no reason and patted down and searched. He was then accused of selling marihuana. Mr. Grant was arrested, strip searched and prosecuted for several months. All charges were dismissed.
- n) On 8/2/09 in the vicinity of Southern Boulevard and East 175th Street, Bronx, NY Jose Suazo was approached by several uniformed officers from the 42nd Precinct for no reason. Mr. Suazo was patted down and searched. Despite the fact that he had nothing illegal on his person he was charged with possession of marihuana. While already in custody in a police van shots were fired in a nearby park. When Mr. Suazo got to the precinct he found out that even though he was already in custody in the police van when the shots were fired, he was charged with possession of a weapon in the second degree. Mr. Suazo was subjected to a strip search. All charges were eventually dismissed.
- o) On 8/12/19 in the vicinity of Marion Avenue and Dorothea Place, Bronx, NY, Edmanuel Benitez was standing outside of the building and waiting for a friend to come outside to play basketball. All of a sudden he was approached for no reason by officers from the 41st Precinct and thereafter patted down, searched, arrested, strip-searched and prosecuted for the sale of marihuana. All charges were dismissed.

- p) On 2/19/12 Daniel Rodriguez was leaving a store in the vicinity of Jerome Avenue and West 192nd Street when he was summarily grabbed, pushed against a wall, patted down, frisked, searched and then handcuffed by several officers from Bronx Narcotics. Mr. Rodriguez was doing nothing illegal or improper at the time. He was subsequently strip searched and charged with possession of a controlled substance in the seventh degree. All charges were dismissed.
- q) On 9/28/11 Shakeem Enang was in the vicinity of West 179th Street and University Avenue when he was approached by several plain clothes officers from Bronx Narcotics Division. Mr. Enang was doing nothing illegal at the time the officers approached or any time prior to the officers approaching. He was grabbed, seized, frisked, searched and then arrested. Mr. Enang was charged with criminal sale of a controlled substance. He was strip searched at the 46th Precinct. All charges were dismissed.

133. As is evidence from the above, Plaintiff's injuries including the violation of his constitutional rights, the deprivation of her freedom, falsely and maliciously being prosecuted, physical and emotional injuries, are the direct and proximate result of the CITY'S and NYPD'S policies and/or deliberate indifference to practices which involve the excessive use of force, false arrest, police cover-ups, witness intimidation, malicious prosecution, illegal stop, questions and frisks, strip searches, Fourth Amendment violations, and deliberate indifference to the need to train, supervise, monitor, investigate and discipline, including suspension, dismissal and/or reassignment offending police officers. The practice is widespread and pervasive throughout the entire City of New York.

134. The CITY and NYPD knew or should have known of the customs and police practices of its officers which included but was not limited to: the failing to preserve and/or destruction of exculpatory evidence, threatening to arrest witnesses to police misconduct and engaging in cover- ups, fraud, perjury, deceit and malfeasance.

135. That the acts of employees of the CITY and NYPD, i.e. police officers, who violate the civil and constitutional rights of the citizens of the City of New York routinely go unreported, undisciplined and their acts condoned by other officers, including their supervisors. Upon information and belief, the supervisors of defendant police officers herein were aware of the conduct of defendant police officers and failed to stop, report or intervene in the misconduct.

136. The CITY and NYPD'S tolerance for brutality, excessive force, illegal and/or retaliatory arrests, and their emphasis to come down hard on quality of life infractions leads to a systemic practice and policy wherein police officers seem fairly tolerant of police brutality, silence in the face of brutality and/or illegal stops, frisks, searches, seizures and/or arrests, and engage in the practice of meeting arrest quotas. A systemic practice where officers who report said misconduct are not viewed as "good cops" but rather as outcasts and are ostracized and often transferred to other assignments thereby perpetuating the illegal conduct of the NYPD and thusly the CITY.

137. Some instances where officers were treated as outcasts for reporting misconduct and/or arrest/summons quota system are as follows:

- a) The existence of arrest quotas, summons quotas and approval of illegal stops and arrests have been exposed by Police officer Adrian Schoolcraft in a separate lawsuit which was cited by Justice Sheindlin in Floyd.
- b) Justice Sheindlin referenced the deposition of Police Officer Adhjlly Polanco of the 41st Precinct stating that commanding officers set specific quotas for arrests and summons and for stop and frisks and threatened to reduce overtime for officers who failed to perform well and re-assign those who fail to meet quotas to less desirable posts.
- c) According to secretly tape-recorded conversations made by Schoolcraft, a Lieutenant, a Deputy Inspector and Chief of transportation can be heard encouraging and demanding increased stops, summons and detentions and arrests.
- d) Police Officer Craig Lance of the 42nd Precinct filed a lawsuit against the NYPD claiming the existence of a quota system and a systematic retaliation and harassment to those who did not comply.
- e) Retired Detective James Griffin filed a lawsuit claiming that in the NYPD there exists a culture wherein officers who report corruption will face harassment and a hostile work environment and that this conduct was tolerated by supervisors within the NYPD.
- f) Police Officer Minoia, an officer with an Ivy League degree, assigned to the 42nd Precinct, was reassigned to a "punishment post" due to the fact that he failed to write a sufficient amount of summons and stated, "I'm not going to pull out my summons book and write a summons because my boss is telling me he's going to make it difficult for me if I don't."

138. In sum, the CITY and NYPD are responsible for creating a custom, policy or practice wherein many officers do not seem to believe that anything is really wrong with stopping and searching innocent citizens or using unnecessary or excessive force or falsely arresting citizens to meet an arrest quota.

139. That the above customs, policies and/or practices and the deliberate indifference thereto, was a direct and proximate cause of the illegal seizure of Plaintiff MICHAEL BROWN, the excessive use of force on Plaintiff, and the false arrest and malicious prosecution of Plaintiff. The CITY and NYPD'S policies, customs and/or practices deprived the Plaintiff of her rights and liberties as set forth in the Constitutions of the United States and the State of New York and under 42 U.S.C. §§ 1983, 1986 and 1988.

140. That said actions violated the Fourth and Fourteenth Amendments to the

Constitution of the United States, violated Plaintiffs right to be secure in person, and that the defendants used excessive, unnecessary and unlawful force, which constituted cruel and inhumane treatment and denied his due process of law.

141. Moreover, the CITY and NYPD caused or created a policy and/or custom, and acted with deliberate indifference to patterns and/or police practices which included illegal seizures, excessive or arbitrary use of force, illegal use of police equipment, destruction of evidence, intimidation of witnesses, illegal arrests, failing to gather evidence when allegations of police misconduct are involved, condoning a code of silence within the NYPD regarding misconduct, failing to take police reports of illegal conduct, failing to properly supervise, train, investigate or discipline officers, and any and/or all of the above have contributed to Plaintiffs false arrest, malicious and false prosecution, and injuries.

142. That the Plaintiff did not commit any illegal act, either before or at the time he was falsely arrested and imprisoned, assaulted, battered and deprived of his constitutional rights as set forth in the Constitution of the United States and 42 U.S.C § 1983.

143. That by reason of the foregoing, Plaintiff MICHAEL BROWN has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state

144. Defendants, individually and collectively are liable for abuses against Plaintiff that shock the conscience in violation of Article 1, § 5 of the New York State Constitution.

SIXTEENTH CAUSE OF ACTION

Violation of Article I, § 12 of the New York State Constitution

145. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

146. Such conduct breached the protections guaranteed to plaintiff by the New York State Constitution, including but not limited to, Article 1, §§ 1, 6, 8, 9, 11, and 12, and including the following rights:

- i. freedom from unreasonable search and seizure of his person and property;
- ii. freedom from arrest without probable cause;
- iii. freedom from false imprisonment, that being wrongfully detained without good faith, reasonable suspicion, or legal justification, and of which wrongful detention plaintiff was aware and did not consent;
- iv. freedom from the lodging of false charges against him by police officers and prosecutors, including on information and belief, by some or all of the individual defendants; and
- v. freedom from deprivation of liberty without due process of law.

147. As a direct and proximate result of defendants' deprivations of Plaintiff's rights, privileges, and immunities guaranteed by the New York State Constitution, Plaintiff suffered physical, economic and emotional injuries, as well as a deprivation of liberty.

148. As a result of the above tortious conduct, Plaintiff was caused to suffer physical, economic, and emotional injuries, as well as a deprivation of liberty.

149. As a result of the above unconstitutional conduct, the City of New York is liable for the conduct of the Individual Defendants and any damages they caused under the doctrine of *respondeat superior*.

JURY DEMAND

150. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, Plaintiff MICHAEL BROWN demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law, and that the Plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988 and 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 801 *et seq.*.

Dated: New York, New York
September 26, 2024

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TO: THE CITY OF NEW YORK, Corporation Counsel, 100 Church Street, NY, NY 10007

NEW YORK CITY POLICE DETECTIVE TIMOTHY RIZZO, Shield No. 3691; NYPD
113th Precinct, 167-02 Baisley Boulevard, Jamaica, NY 11434

NEW YORK CITY POLICE DETECTIVE ANTHONY FARANDA, Shield No. 5186;
NYPD 113th Precinct, 167-02 Baisley Boulevard, Jamaica, NY 11434

ATTORNEY'S VERIFICATION

MICHAEL PECORELLA, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **SHULMAN-HILL PLLC**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because Plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
September 26, 2024

Michael F. Pecorella
MICHAEL PECORELLA, ESQ.